

HOUSE BILL 1440

By Butler

AN ACT to amend Chapter 467 of the Private Acts of 1951; as amended by Chapter 233 of the Private Acts of 1976; and any other acts amendatory thereto, relative to Morgan County.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Chapter 467 of the Private Acts of 1951, as amended by Chapter 233 of the Private Acts of 1976, and any other acts amendatory thereto, is amended by deleting the following language in Section 1:

At the August election 1952, there shall be elected by the qualified voters of said county some person as County Attorney, who shall be a licensed practicing attorney, who shall hold office for a period of four years and until his successor shall be elected and qualified. He shall take office upon September 1 next following his election. To fill the vacancy occasioned by the creation of such office, Geo. W. Dagley is hereby named as such County Attorney to serve until September 1, 1952.

and substituting instead:

The County Attorney shall be a licensed practicing attorney who is appointed or hired subject to a vote of the Morgan County Commission to serve a term of four years. The County Attorney does not need to be a resident of Morgan County to serve as County Attorney.

SECTION 2. Nothing in this act shall be construed to remove any incumbent from office or abridge the term of any incumbent prior to the end of the term for which such elected official was selected, as prescribed in Article XI, Section 9 of the Constitution of the State of Tennessee.

SECTION 3. This act shall have no effect unless it is approved by a two-thirds (2/3) vote of the legislative body of Morgan County. Its approval or nonapproval shall be proclaimed by the presiding officer of the legislative body and certified to the secretary of state.

SECTION 4. For the purpose of approving or rejecting the provisions of this act, it shall be effective upon becoming a law, the public welfare requiring it. For all other purposes, it shall become effective as provided in Section 3.